

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                                              |                           |                                                       |                                               |                                            |
|---------------------------------------------------|--------------------------------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Ariel Courage                    | Team:<br>Squad #06                                                                                           | CCRB Case #:<br>201600638 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                   |                                                                                                              |                           | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 01/19/2016 6:35 PM   | Location of Incident:<br>At St. Ann's Avenue and East 161st Street and inside the 40th Precinct stationhouse | 18 Mo. SOL<br>7/19/2017   | Precinct:<br>40                                       |                                               |                                            |
| Date/Time CV Reported<br>Wed, 01/20/2016 12:35 AM | CV Reported At:<br>IAB                                                                                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 01/25/2016 3:53 PM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POM Coty Green     | 14012  | 949057 | 040 PCT |
| 2. POM Romaine Wilson | 00910  | 949804 | 040 PCT |
| 3. SGT Brian Ramirez  | 01750  | 937327 | 040 PCT |
| 4. POM Juan Cabrera   | 26123  | 948314 | 040 PCT |
| 5. Officers           |        |        | 040 PCT |

| Officer(s)             | Allegation                                                                                                                            | Investigator Recommendation      |
|------------------------|---------------------------------------------------------------------------------------------------------------------------------------|----------------------------------|
| A . POM Romaine Wilson | Abuse: At St. Ann's Avenue and East 161st Street in the Bronx, Police Officer Romaine Wilson stopped § 87(2)(b)                       | A . Unsubstantiated              |
| B . POM Coty Green     | Abuse: At St. Ann's Avenue and East 161st Street in the Bronx, Police Officer Coty Green stopped § 87(2)(b)                           | B . Unsubstantiated              |
| C . Officers           | Abuse: At St. Ann's Avenue and East 161st Street in the Bronx, officers stopped § 87(2)(b)                                            | C . Alleged Victim Uncooperative |
| D . Officers           | Abuse: An St. Ann's Avenue and East 161st Street in the Bronx, officers stopped § 87(2)(b)                                            | D . Alleged Victim Unavailable   |
| E . POM Romaine Wilson | Discourtesy: At St. Ann's Avenue and East 161st Street in the Bronx, Police Officer Romaine Wilson spoke discourteously to § 87(2)(b) | E . Unsubstantiated              |
| F . POM Romaine Wilson | Force: At St. Ann's Avenue and East 161st Street in the Bronx, Police Officer Romaine Wilson used physical force against § 87(2)(b)   | F . Unsubstantiated              |
| G . POM Coty Green     | Force: At St. Ann's Avenue and East 161st Street in the Bronx, Police Officer Coty Green used physical force against § 87(2)(b)       | G . Unsubstantiated              |
| H . POM Coty Green     | Abuse: At St. Ann's Avenue and East 161st Street in the Bronx, Police Officer Coty Green searched § 87(2)(b)                          | H . Substantiated                |
| I . SGT Brian Ramirez  | Abuse: At St. Ann's Avenue and East 161st Street in the Bronx, Sergeant Brian Ramirez arrested § 87(2)(b)                             | I . Substantiated                |
| J . POM Juan Cabrera   | Discourtesy: En route to the 40th Precinct stationhouse, Police Officer Juan Cabrera spoke discourteously to § 87(2)(b)               | J . Unsubstantiated              |

| Officer(s)             | Allegation                                                                                                                                                     | Investigator Recommendation |
|------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| K . POM Juan Cabrera   | Off. Language: En route to the 40th Precinct stationhouse, Police Officer Juan Cabrera made remarks to § 87(2)(b) based upon his perceived sexual orientation. | K . Unsubstantiated         |
| L . POM Romaine Wilson | Force: En route to the 40th Precinct stationhouse, Police Officer Romaine Wilson used physical force against § 87(2)(b)                                        | L . Unsubstantiated         |
| M . POM Romaine Wilson | Force: Inside of the 40th Precinct stationhouse, Police Officer Romaine Wilson used physical force against § 87(2)(b)                                          | M . Exonerated              |
| N . SGT Brian Ramirez  | Force: Inside of the 40th Precinct stationhouse, Sergeant Brian Ramirez used physical force against § 87(2)(b)                                                 | N . Exonerated              |
| O . POM Coty Green     | Force: Inside of the 40th Precinct stationhouse, Police Officer Coty Green used physical force against § 87(2)(b)                                              | O . Exonerated              |
| P . POM Juan Cabrera   | Force: Inside of the 40th Precinct stationhouse, Police Officer Juan Cabrera used physical force against § 87(2)(b)                                            | P . Exonerated              |
| Q . POM Romaine Wilson | Discourtesy: Inside of the 40th Precinct stationhouse, Police Officer Romaine Wilson spoke discourteously to § 87(2)(b)                                        | Q . Unsubstantiated         |
| R . POM Juan Cabrera   | Discourtesy: Inside of the 40th Precinct stationhouse, Police Officer Juan Cabrera spoke discourteously to § 87(2)(b)                                          | R . Unsubstantiated         |
| S . POM Romaine Wilson | Abuse: Inside of the 40th Precinct stationhouse, Police Officer Romaine Wilson threatened § 87(2)(b) with the use of force.                                    | S . Unsubstantiated         |
| § 87(4-b) § 87(2)(g)   |                                                                                                                                                                |                             |

### Case Summary

On January 20, 2016, Captain Aversano of the 40<sup>th</sup> Precinct called IAB to report an injury to a juvenile prisoner, § 87(2)(b) (BR 01). On January 25, 2016, this complaint was referred to the CCRB.

§ 87(2)(g)

On January 19, 2016, at approximately 6:35 p.m., § 87(2)(b) was walking east on East 161<sup>st</sup> Street with two of his friends, § 87(2)(b) and § 87(2)(b) when he saw an unmarked police vehicle assigned to the 40<sup>th</sup> Precinct Anti-Crime team. § 87(2)(b) yelled at the unmarked police vehicle. The unmarked police vehicle pulled up to § 87(2)(b). Two officers, identified by the investigation as PO Coty Green and PO Romaine Wilson, stopped § 87(2)(b) (**Allegations A and B**). A short time afterwards, PO Green and PO Wilson were joined by Sgt. Brian Ramirez and PO Juan Cabrera, who were on foot. Unidentified officers stopped § 87(2)(b) and § 87(2)(b) (**Allegations C and D**).

PO Wilson allegedly said to § 87(2)(b) upon approach, “What the fuck did you say?” (**Allegation E**). PO Wilson allegedly grabbed § 87(2)(b) by his arms and pushed him against a wall (**Allegation F**). PO Wilson brought § 87(2)(b) to the ground (**subsumed under Allegation F**), allegedly with the aid of another officer, identified by the investigation as PO Green (**Allegation G**). § 87(2)(b) was then handcuffed. PO Green searched § 87(2)(b) (**Allegation H**). The officers, supervised by Sgt. Ramirez, brought § 87(2)(b) to the 40<sup>th</sup> Precinct stationhouse (**Allegation I**).

En route to the 40<sup>th</sup> Precinct stationhouse, an officer identified by the investigation as PO Cabrera allegedly told § 87(2)(b) that he was going to “fuck [him] in the ass,” asked § 87(2)(b) if he was gay, and joked about going to the corner store to buy condoms (**Allegations J and K**). During transport PO Wilson also allegedly slapped § 87(2)(b) twice in his face (**Allegation L**).

Officers learned at the 40<sup>th</sup> Precinct stationhouse that § 87(2)(b) was § 87(2)(b). § 87(2)(b) was brought to a juvenile holding area inside of the 40<sup>th</sup> Precinct stationhouse. Once in this holding area, PO Wilson released § 87(2)(b) from his handcuffs. § 87(2)(b) then punched PO Wilson in the face. PO Wilson allegedly responded to this by repeatedly slapping and punching § 87(2)(b) about his head (**Allegation M**). Sgt. Ramirez also allegedly punched § 87(2)(b) on his head (**Allegation N**). PO Wilson (**subsumed under Allegation M**), Sgt. Ramirez (**subsumed under Allegation N**), PO Green (**Allegation O**), and PO Cabrera (**Allegation P**) then brought § 87(2)(b) onto the ground, where he was again handcuffed.

After this struggle, § 87(2)(b) was left in the juvenile holding area. PO Wilson and PO Cabrera later visited him in the juvenile holding area. PO Wilson called § 87(2)(b) a “little girl,” and a “pussy” (**Allegation Q**). PO Cabrera also allegedly called § 87(2)(b) a “little girl” (**Allegation R**). PO Wilson allegedly told § 87(2)(b) “We could take you in a back room and fight. If you win we’ll let you go. If you lose, you’ll have to admit that you had a weapon.” (**Allegation S**) § 87(2)(g), § 87(4-b)

§ 87(2)(b) was eventually transported to Horizon Juvenile Center, where he complained of pain. § 87(2)(b) was brought back to the 40<sup>th</sup> Precinct stationhouse and an ambulance was called for him. § 87(2)(a) PHL § 18(6)

§ 87(2)(b) believed this was sustained from being punched repeatedly at the 40<sup>th</sup> Precinct stationhouse.

§ 87(2)(b) was arrested and charged with § 87(2)(b)

Video footage was obtained from an establishment on East 161<sup>st</sup> Street, which depicts a portion of this incident (BR 03 to BR 05).



2016-04-20\_12-56-30.mp4

Video footage was also obtained from a bodega at East 161<sup>st</sup> Street and St. Ann's Avenue in the Bronx, but it does not depict this incident (BR 06 to 07). There is no video footage from inside of the 40<sup>th</sup> Precinct stationhouse.

### **Mediation, Civil and Criminal Histories**

- This case was not eligible for mediation due to § 87(2)(b)'s arrest.
- As of April 20, 2016, § 87(2)(b) his father, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with respect to this incident (BR 08).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]

### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint involving § 87(2)(b) (BR 12), § 87(2)(b) (BR 13), and § 87(2)(b) (BR 14).
- Sgt. Ramirez has been a member of the service for 11 years. There are 10 allegations against him across 8 prior cases occurring between 2006 and the present, one of which was substantiated. § 87(2)(g)  
[REDACTED]
  - In CCRB case 201506894, an allegation of refusal to obtain medical treatment was substantiated. The Board recommended command discipline. The NYPD disposition is pending.
- PO Wilson has been a member of the service for 5 years. There are 4 allegations against him across 3 prior cases, one of which was substantiated. In one of these cases, it was alleged that PO Wilson punched a prisoner in the police vehicle en route back to the stationhouse. This allegation was unsubstantiated. § 87(2)(g)  
[REDACTED].
  - In CCRB case 201200857, an allegation of a stop was substantiated. The Board recommended charges. PO Wilson was found not guilty at trial and received no penalty.
- PO Green has been a member of the service for 5 years. There are 7 allegations against him across 4 prior cases, one of which was substantiated. § 87(2)(g)  
[REDACTED]
  - In CCRB case 201200857, an allegation of a stop was substantiated. The Board recommended charges. PO Green was found not guilty at trial and received no penalty.

- PO Cabrera has been a member of the service for 6 years. There are 15 allegations against him across six prior cases occurring between 2011 and the present, the following of which have been substantiated:
  - In CCRB case 201302335, allegations of a vehicle search, discourtesy, frisk, and stop of person were substantiated. The Board recommended charges. The NYPD disposition is pending.

### Potential Issues

- The investigation was not able to obtain a statement from § 87(2)(b) § 87(2)(b) provided a cell phone number for § 87(2)(b). Between February 17, 2016, and February 22, 2016, three calls were placed to this number. On February 22, 2016, contact was established with § 87(2)(b) provided his address and pedigree information. Because § 87(2)(b) was under the age of 16, § 87(2)(b) was requested to have a parent or guardian provide consent for him to give a statement. § 87(2)(b) could not provide this information during the call on February 22, 2016, but promised to call back later that day to provide it. § 87(2)(b) did not call back as promised. Between February 25 and February 29, 2016, two further calls were placed to § 87(2)(b). Each time, messages were left on § 87(2)(b) voicemail requesting calls back. Between February 25, 2016 and March 4, 2016, two please-call letters and emails were sent, addressed to § 87(2)(b) and/or his legal guardian, none of which was returned as undeliverable. Between February 17, 2016, and March 3, 2016, four calls were placed to § 87(2)(b) requesting that he remind § 87(2)(b) to contact the CCRB. § 87(2)(b) either promised to have § 87(2)(b) call, or voice messages were left for him. To date, the investigation has not been able to obtain a statement from § 87(2)(b).
- The investigation was not able to obtain a statement from § 87(2)(b) § 87(2)(b) could not provide an address or phone number for § 87(2)(b). Searches for § 87(2)(b) in applicable databases, including CTS, Lexis Nexis, and CLEAR, returned negative results. The investigation located one prior arrest for § 87(2)(b) in BADS, but the report was sealed and could not be accessed (BR 11). As is discussed in greater detail below, there is no documentation of this incident pertaining to § 87(2)(b). Between February 17, 2016, and March 3, 2016, the investigation contacted § 87(2)(b) requesting that he provide § 87(2)(b)'s contact information, or pass on the CCRB's contact information to § 87(2)(b). Each time, § 87(2)(b) either promised to do so, or voice messages were left with § 87(2)(b) reminding him to do so. To date, § 87(2)(b) has not provided the contact information for § 87(2)(b) and the investigation has not been able to locate any by other means.
- § 87(2)(b) thought § 87(2)(b) might have been recording this incident on his cell phone. § 87(2)(b) did not cooperate with this investigation and therefore this cell phone footage was not obtained.
- The location of this incident was initially reported as that documented on the arrest report, or the northeast corner of East 161<sup>st</sup> Street and St. Ann's Avenue. Field Work was performed on February 10, 2016. Video footage was recovered from a bodega at that location (BR 06 and 07); however, as it was later revealed that the incident in fact occurred on the south side of East 161<sup>st</sup> Street between St. Ann's Avenue and Eagle Avenue, the video from the bodega does not depict this incident.

- After the incident location was clarified during § 87(2)(b)'s interview on February 9, 2016 (BR 15), Field Work was again performed to canvass for additional video footage on February 16, 2016 (BR 18) and February 17, 2016 (BR 17), yielded positive results from 580 East 161<sup>st</sup> Street. While the video footage (BR 03 to 05) depicts a portion of this incident, it does not depict it in its entirety; the majority of the encounter appears to occur just out of the frame. The proprietor of the neighboring establishment at 586 East 161<sup>st</sup> Street did not keep video equipment. The investigation was therefore unable to obtain video footage depicting the entirety of the encounter.
- The 40<sup>th</sup> Precinct was unable to locate a copy of the prisoner holding pen roster (BR 25). Attempts to locate possible witnesses using the command log (BR 26) yielded negative results.

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

- **Stop of** § 87(2)(b) § 87(2)(b) (BR 15) alleged that as he, § 87(2)(b) and § 87(2)(b) walked eastbound on the southern side of East 161<sup>st</sup> Street, an unmarked police vehicle pulled parallel to them, and three officers exited and approached.

One of these officers, who § 87(2)(b) described as being a dark-complexioned Hispanic or mixed-race male, about 5'3" tall, in his mid-30s, slimly built, with black hair and braces, who later drove § 87(2)(b) to the 40<sup>th</sup> Precinct stationhouse, approached § 87(2)(b) asked him, "What the fuck did you say," and eventually pushed § 87(2)(b) against a gate and then against the ground.

The second officer § 87(2)(b) described as being a white male, slightly shorter than 5'9" tall, in his mid- to late-30s or almost 40, with muscular build, clean-shaven, and bald, who rode in the front passenger seat en route to the 40<sup>th</sup> Precinct stationhouse.

The third officer § 87(2)(b) described as a dark-complexioned Hispanic or mixed race male, in his mid-30s, with slim build, about 5'4" tall, and also bald, who rode in the rear driver side en route to the 40<sup>th</sup> Precinct stationhouse, and who was quiet throughout this incident.

§ 87(2)(b) said that there was a fourth officer who approached the scene later on foot. § 87(2)(b) described this fourth officer as being a white male with a tan complexion, chubby build, about 5'3" to 5'4" tall, in his late 20s, with stubble or a short beard, and also bald.

PO Wilson is a § 87(2)(b) black male, § 87(2)(b), with black hair, brown eyes, and clear braces (BR 19). PO Wilson was the operator of the police vehicle on this date, and was driving it both before the stop of § 87(2)(b) and after, when they went back to the 40<sup>th</sup> Precinct stationhouse. PO Wilson therefore most closely matches the description § 87(2)(b) provided of the first officer to approach him. PO Wilson thought that he, PO Green, Sgt. Ramirez, and PO Cabrera all approached § 87(2)(b) simultaneously. PO Wilson said that PO Green was the first officer to have contact with § 87(2)(b) while PO Wilson spoke to § 87(2)(b)'s friends.

Sgt. Ramirez is a § 87(2)(b) Hispanic male, § 87(2)(b) with close-shaven black hair and brown eyes (BR 20). Sgt. Ramirez said he sat in the front passenger seat en route to the 40<sup>th</sup> Precinct stationhouse. Sgt. Ramirez therefore most closely matches the description § 87(2)(b) provided of the second officer. Sgt. Ramirez

said that he was not present when PO Green and PO Wilson approached § 87(2)(b) as he was at that time ending his investigation of two unknown males who may have been casing the bodega on the northeast corner of St. Ann's Avenue and East 161<sup>st</sup> Street. When Sgt. Ramirez did eventually approach, it appeared to him that PO Green was the officer primarily interacting with § 87(2)(b).

PO Green is a § 87(2)(b) black male, § 87(2)(b), with black hair and brown eyes (BR 21). PO Green said that he sat in the rear on the driver's side en route to the 40<sup>th</sup> Precinct stationhouse. PO Green therefore most closely matches the description § 87(2)(b) provided of the third, "quiet" officer. PO Green also thought that he, PO Green, Sgt. Ramirez, and PO Cabrera all approached § 87(2)(b) simultaneously. PO Green also said that he was the primary contact officer with § 87(2)(b).

PO Cabrera is a § 87(2)(b) Hispanic male, § 87(2)(b) with black hair and brown eyes (BR 22). PO Cabrera sat in the rear passenger seat en route to the 40<sup>th</sup> Precinct stationhouse. PO Cabrera therefore most closely matches § 87(2)(b)'s description of the fourth and final officer to arrive to the scene. PO Cabrera corroborated Sgt. Ramirez's statement that they were not present for the initial approach to § 87(2)(b).

Video footage (BR 04 to 05; see above file labeled 2016\_4-20\_12-56-30.mp4) depicts the unmarked police vehicle pulling over to the curb of the south side of East 161<sup>st</sup> Street. Once the vehicle pulls over, it is almost entirely out of view except for its rear bumper. The video footage therefore does not clearly depict which or how many officers exit the vehicle, although one – presumably PO Wilson, as he was on the driver side of the vehicle, though only his legs are visible – walks around the rear of the vehicle to the sidewalk. By the time the vehicle pulls over, § 87(2)(b) and one of his two friends – it is impossible to identify whether it is § 87(2)(b) or § 87(2)(b) from the video footage – have continued walking east, so that they are eclipsed by the top of the frame, or an awning for a neighboring business. One of § 87(2)(b)'s friends is visible – again, it is impossible to identify whether it is § 87(2)(b) or § 87(2)(b) – standing near the curb with his back to the camera.

Shortly after the police vehicle pulls over, an officer, identified by the investigation as Sgt. Ramirez, runs up to the scene on the south side of East 161<sup>st</sup> Street. Sgt. Ramirez appears to approach simultaneously with an officer, identified by the investigation as PO Wilson, who appears to walk around the rear of the vehicle. Because § 87(2)(b) and the front passenger seat of the police vehicle are not visible to the camera, it is not clear if PO Green has approached by this time or not. A second officer, identified by the investigation as PO Cabrera, a short time later also appears to cross the street from the north to the south side at a slight angle, approaching where § 87(2)(b) and § 87(2)(b) are standing with the officers.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

- **Stop of** § 87(2)(b) **and** § 87(2)(b) § 87(2)(b) alleged that when PO Wilson approached him, other officers – he could not see which (in his telephone statement (BR 23), he said he thought it was PO Green and PO Cabrera, but did not see which officer interacted with which of his friends) – stopped both § 87(2)(b) and § 87(2)(b) by physically placing them against a wall.

As was discussed above, neither § 87(2)(b) nor § 87(2)(b) participated in this investigation.

Video footage (BR 04 to 05; see above file labeled 2016\_4-20\_12-56-30.mp4) documents that an officer grabbed one of § 87(2)(b)'s friends and brought him from the curb closer to the wall. § 87(2)(g)

PO Cabrera, PO Green, and Sgt. Ramirez all denied that either of § 87(2)(b)'s two friends were ever stopped, or ever physically placed against a wall. PO Wilson acknowledged that he spoke briefly and casually to one of § 87(2)(b)'s friends, but denied stopping them, or making physical contact with them. Reviewing video footage did not refresh their recollection. § 87(2)(g)

- **Discourtesy:** § 87(2)(g)

§ 87(2)(g)



§ 87(2)(g)

§ 87(2)(g)

- **Physical Force:** § 87(2)(g)

§ 87(2)(b) said that PO Wilson first grabbed him and pushed him against a wall, and that PO Green came to PO Wilson's aid, and that both officers brought him onto the ground.

PO Green said that he was the one who pushed § 87(2)(b) against a gate, and then brought him onto the ground. PO Green said that PO Wilson, PO Cabrera, and Sgt. Ramirez all assisted in bringing § 87(2)(b) onto the ground.

PO Wilson saw PO Green struggling with § 87(2)(b). PO Wilson denied pushing § 87(2)(b) up against a gate, but acknowledged that he helped bring § 87(2)(b) onto the ground.

Sgt. Ramirez did not believe § 87(2)(b) was ever pushed against a wall or brought to the ground, though he saw PO Wilson and PO Green handcuffing him. Sgt. Ramirez denied struggling with § 87(2)(b) physically at this juncture.

PO Cabrera said that when he approached the scene, he helped PO Wilson and PO Green place § 87(2)(b) into handcuffs. PO Cabrera did not believe Sgt. Ramirez assisted.

Video footage (BR 04 to 05; see above file labeled 2016\_4-20\_12-56-30.mp4) confirms that § 87(2)(b) was brought to the ground, as at the 1:20 minute mark his head is visible on the sidewalk in a circle of light from a flashlight. However, video footage does not show how § 87(2)(b) came to be on the ground, which officers were involved in bringing him onto the ground, or how many.

§ 87(2)(g)

- **Search:** § 87(2)(b) did not allege a search. No search is depicted on video footage. PO Green acknowledged searching § 87(2)(b) at the scene. § 87(2)(g)

- **Arrest:** § 87(2)(g)

- **Offensive Language:** § 87(2)(b) said that en route to the 40<sup>th</sup> Precinct stationhouse, the officer sitting in the rear passenger seat said that he was going to “fuck § 87(2)(b) in his ass,” asked § 87(2)(b) if he was gay, and joked about stopping at a store to buy condoms. While PO Cabrera denied making any such comments to § 87(2)(b) PO Cabrera acknowledged that he was sitting in the rear passenger seat of the vehicle § 87(2)(b).
- **Force:** § 87(2)(b) alleged that en route to the 40<sup>th</sup> Precinct stationhouse, the officer driving reached into the backseat and slapped him. Although PO Wilson denied slapping § 87(2)(b) he acknowledged that he was driving the police vehicle § 87(2)(g).
- **Force:** § 87(2)(b) alleged that after he struck PO Wilson, PO Wilson reacted by punching him and slapping him about his face repeatedly, as did Sgt. Ramirez. § 87(2)(g).
- **Force:** § 87(2)(b) alleged that PO Wilson and Sgt. Ramirez brought him onto the ground with assistance from PO Cabrera and PO Green. PO Cabrera and PO Green denied bringing § 87(2)(b) onto the ground, and while PO Green acknowledged using some level of physical force against § 87(2)(b) PO Cabrera said that by the time he arrived in the juvenile holding area from the muster room, § 87(2)(b) had been handcuffed. § 87(2)(g).
- **Discourtesy:** § 87(2)(b) alleged that while he was in the juvenile holding area during his arrest processing, PO Wilson and PO Cabrera visited him in the holding cells, and that both of them called him a “little girl” and a “pussy.” § 87(2)(g).

#### **Allegations not pleaded**

- § 87(2)(g)
- § 87(2)(g)

**Allegation A – Stop: At St. Ann’s Avenue and East 161<sup>st</sup> Street in the Bronx, Police Officer Romaine Wilson stopped § 87(2)(b)**

**Allegation B – Stop: At St. Ann’s Avenue and East 161<sup>st</sup> Street in the Bronx, Police Officer Coty Green stopped § 87(2)(b)**

It is not disputed that § 87(2)(b) yelled at PO Wilson’s and PO Green’s vehicle, and that PO Wilson and PO Green then approached him.

§ 87(2)(b) (BR 15) saw PO Wilson and PO Green driving in their unmarked police vehicle, recognized them to be police officers, and thought from the way that they were driving that they were following him and his friends. § 87(2)(b) therefore yelled at the vehicle, “Why y’all following us?” PO Wilson and PO Green then pulled over to the curb and approached § 87(2)(b). PO Wilson asked § 87(2)(b) what he said and ordered § 87(2)(b) to remove his hands from his pockets. § 87(2)(b) who had been holding both of his hands in the front waist pocket of his hoodie, did so. § 87(2)(b) was carrying a wooden hairbrush in his right hoodie pocket, the handle of which was emerging slightly from his pocket; no officer asked him about this object. PO Wilson and § 87(2)(b) then yelled and cursed at each other back and forth. § 87(2)(b) could not remember what exactly was said during this time.

Video footage ((BR 04 to 05; see above file labeled 2016\_4-20\_12-56-30.mp4) depicts either § 87(2)(b) or § 87(2)(b) running east on the south side of East 161<sup>st</sup> Street, followed at a distance of about 10 feet by § 87(2)(b) identifiable as his hands are in his hoodie pockets and he is not carrying a backpack, and a third individual, again either § 87(2)(b) or § 87(2)(b) walking behind § 87(2)(b). By the time the officers approach, § 87(2)(b) is either standing out of the frame or eclipsed from the camera’s view by the awning of a neighboring business. The stop of § 87(2)(b) is not depicted on video footage. Video footage obtained from the bodega (BR) is also not helpful in determining how § 87(2)(b) was behaving before the stop occurred, as it lacks audio, and is too far removed from the scene to capture § 87(2)(b).

PO Wilson (BR 19) said that he, PO Green, Sgt. Ramirez, and PO Cabrera were in their unmarked police vehicle following two unknown men that they suspected of casing a bodega on the northeast corner of East 161<sup>st</sup> Street and St. Ann’s Avenue that had been the target of commercial robberies in the past when § 87(2)(b) who was walking north on the east side of St. Ann’s Avenue towards East 161<sup>st</sup> Street, began yelling at their vehicle, making comments to the effect of, “Fuck these niggas. Fuck the police. I hate them. These niggas ain’t going to stop us.” PO Wilson saw that § 87(2)(b) was with two friends, who were both quiet.

The officers paid no attention to § 87(2)(b) at this time, driving past him to go to the bodega to continue their investigation of the two unknown males suspected of casing. The investigation of the two males lasted less than one minute, during which time § 87(2)(b) continually yelled while walking north and then turned to walk east on East 161<sup>st</sup> Street.

PO Wilson, PO Green, Sgt. Ramirez, and PO Cabrera got back into their vehicle, drove east on East 161<sup>st</sup> Street to catch up to § 87(2)(b) pulled over, and approached him. PO Wilson did not intend to stop § 87(2)(b) but rather to find out if he was okay, why he was yelling at the officers, and to “maybe see why he hates us so much, maybe have a brief conversation.” PO Wilson believed that by this juncture § 87(2)(b) had committed the violation of disorderly conduct, insofar as he was creating excessive noise and thereby creating public alarm (PO Wilson thought there were other people in the area, but did not remember if any stopped to observe § 87(2)(b) or gathered at the scene), but he did not intend to issue him a summons, as the Anti-Crime unit does not focus on summons enforcement, or even carry summons books with them. PO Wilson did not suspect § 87(2)(b) of committing any crime. PO Wilson and his fellow officers had no explicit discussion about their observations of § 87(2)(b) or what they intended to do with him before they approached.

As was discussed above, PO Wilson denied initially approaching § 87(2)(b) instead saying that he had a brief and casual conversation with one of § 87(2)(b)’s friends, asking whether or not they were all right. PO Wilson heard PO Green tell § 87(2)(b) to take his hands from his pockets, and observed § 87(2)(b) with his right hand in his pocket, along with a

pointed, 3 to 5-inch long bulge, but did not otherwise pay attention to PO Green's interaction with § 87(2)(b) until he saw that PO Green and § 87(2)(b) were engaged in a physical struggle.

PO Green (BR 21) generally corroborated PO Wilson's account. PO Green added that when § 87(2)(b) was yelling at the police vehicle, he also gestured towards the police vehicle with his thumb and pointer finger in an L or gun-shape, which PO Green interpreted as a violent gesture. PO Green also added that before pulling over the unmarked vehicle, PO Wilson said, "You know what? Let's see what's wrong with this kid." PO Green similarly said that his intent was to have a conversation with § 87(2)(b). PO Green did not initially consider him to be stopped. PO Green also noted that in the past, sometimes people will act in this fashion to encourage the police to interact with them, and that once the police approach them, they will convey information about crimes to the police, as they do not want to be seen as voluntarily speaking to the police. PO Green thought that § 87(2)(b) may have been attempting to do that. PO Green similarly said that § 87(2)(b) had by this point committed disorderly conduct, though he had no intention of issuing him a summons for this violation and never saw any other civilians gathering at the scene beyond § 87(2)(b)'s two friends, who had already been with him.

As PO Green walked up to § 87(2)(b) he said, "Police. What's wrong with you, brother?" PO Green also simultaneously observed that § 87(2)(b) was holding his right hand in the front waist-level pocket of his hoodie or jacket, and that there was an object in his right pocket behind his hand that was creating a bulge. PO Green estimated that the bulge was about four inches long, and came to a point towards the interior of § 87(2)(b)'s pocket. Because the object came to a point, PO Green believed it to be hard. PO Green could not tell if the object weighed down § 87(2)(b)'s pocket or not because § 87(2)(b)'s hand was also in the pocket. PO Green did not believe any part of the object was sticking out of § 87(2)(b)'s pocket.

PO Green, fearing that it might have been some kind of weapon, told § 87(2)(b) "Do me a favor, take your hand out of your pocket." § 87(2)(b) refused, saying, "Yo, fuck you... I don't have to fucking listen to you." PO Green repeated this instruction and § 87(2)(b) repeatedly refused. When PO Green came closer to § 87(2)(b) he attempted to frisk § 87(2)(b)'s right pocket, saying, "What do you have in your pocket that you won't take your hand out?" Before PO Green was able to touch § 87(2)(b) § 87(2)(b) bladed his body so that his right side was turned away from PO Green and said, "Don't fucking touch me." When PO Green again attempted to reach for § 87(2)(b)'s right pocket, § 87(2)(b) slapped PO Green's hand away. PO Green then gripped § 87(2)(b)'s right arm to hold it against his body, at which time a physical struggle ensued between PO Green and § 87(2)(b). The bulge was later revealed to have been created by a hairbrush.

PO Green completed a Stop, Question, and Frisk report for the stop of § 87(2)(b) (BR 16), § 87(2)(g) under 'circumstances leading to the stop,' in addition to checking 'suspicious bulge or object,' he checked 'actions indicative of casing victim or location,' and 'ongoing investigations, e.g. robbery pattern.' PO Green explained that these referred to his suspicion that § 87(2)(b) might have known the two unknown men that PO Green and his team had been following on suspicion of casing the bodega, and that his yelling might have been an attempt to create a diversion on their behalf.

Sgt. Ramirez (BR 20) and PO Cabrera (BR 22) were not present for the initial approach to § 87(2)(b).

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, he engages in fighting, violent, tumultuous or threatening behavior, makes unreasonable noise, uses abusive or obscene language or makes an obscene gesture, obstructs

pedestrian traffic, or congregates with other persons in a public space and refuses to comply with a lawful order to disperse. NYS Penal Law, Section 240.20 (1-6) (BR 27) Taking videotapes, crude and vulgar speech, and remaining in the vicinity of a stop or arrest does not constitute probable cause for arrest of an onlooker, unless the officer reasonably believes his safety, or the safety of others, is endangered. Patrol Guide Section 208-03 (BR 28)

An officer may stop a person only if he reasonably suspects that a person is committing, has committed, or is about to commit a crime. People v. De Bour, 40 N.Y.2d 210 (1976) (BR 29) The minimal intrusion of approaching to request information is permissible when there is some objective credible reason for that interference not necessarily indicative of criminality. *Ibid.*

For a bulge in a suspect's clothing to justify a frisk, the bulge's size, shape, and placement must support the conclusion that the bulge is a weapon. United States v. Jackson, 2015 U.S. Dist. LEXIS 98980 (S.D.N.Y.) (BR 30)

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

**Allegation C – Stop: At St. Ann’s Avenue and East 161<sup>st</sup> Street in the Bronx, officers stopped** § 87(2)(b)

**Allegation D – Stop: At St. Ann’s Avenue and East 161<sup>st</sup> Street in the Bronx, officers stopped** § 87(2)(b)

As was discussed in greater detail above, the investigation was not able to obtain a statement from § 87(2)(b) nor was it able to establish any contact whatsoever with § 87(2)(b). Although video footage depicts an unidentified officer stopping an unidentified individual, the investigation was not able to identify who appears on the video footage without a statement from § 87(2)(b) or § 87(2)(b).

As such, it is recommended that **Allegation C** be closed as **victim uncooperative** and **Allegation D** be closed as **victim unavailable**.

**Allegation E – Discourtesy: At St. Ann’s Avenue and East 161<sup>st</sup> Street in the Bronx, Police Officer Romaine Wilson spoke discourteously to** § 87(2)(b)

§ 87(2)(b) (BR 15) said that when PO Green and PO Wilson approached, PO Wilson yelled and cursed at him. § 87(2)(b) yelled and cursed back at him. § 87(2)(b) could not remember any phrases that PO Wilson used, but thought he might have said something to the effect of, “What the fuck did you say?” (In his telephone statement, § 87(2)(b) similarly said that PO Wilson cursed repeatedly at him, but only remembered one specific phrase: “Take your hands out of your fucking pockets.”)

PO Wilson (BR 19) denied saying, “What the fuck did you say?” to § 87(2)(b). PO Wilson denied using profanity in general, as did PO Cabrera (BR 22), Sgt. Ramirez (BR 20), and PO Green (BR 21).

§ 87(2)(g)

As such, it is recommended that **Allegation E** be closed as **unsubstantiated**.

**Allegation F – Force: At St. Ann’s Avenue and East 161<sup>st</sup> Street in the Bronx, Police Officer Romaine Wilson used physical force against** § 87(2)(b)

**Allegation G – Force: At St. Ann’s Avenue and East 161<sup>st</sup> Street in the Bronx, Police Officer Coty Green used physical force against** § 87(2)(b)

It is undisputed that physical force was used against § 87(2)(b) § 87(2)(g)

§ 87(2)(b) (BR 15) alleged that after yelling and cursing at PO Wilson, PO Wilson became angry, and as a result pushed him front-first against a wall and then with the help of PO Green brought him onto the ground. § 87(2)(b)'s forehead inadvertently struck the sidewalk when he landed, causing a bruise there. § 87(2)(b) denied that he resisted officers at this juncture.

§ 87(2)(b) was escorted to § 87(2)(b) (BR 31) from the 40<sup>th</sup> Precinct stationhouse, after both his struggle with officers at the scene of his arrest and his later struggle with them inside of the juvenile holding area. § 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

As was discussed above, the investigation was unable to obtain a statement from § 87(2)(b) and unable to establish contact with § 87(2)(b) the only known witnesses to this incident.

Video footage (BR 04 to 05; see above file labeled 2016\_4-20\_12-56-30.mp4) is not helpful in assessing this allegation as § 87(2)(b) does not appear in the frame until after he is brought onto the ground. In addition, due to the camera's distance from the incident and blurry quality, and that a portion of the frame is obscured by the awning of a neighboring establishment, video footage is not helpful in determining which officers brought § 87(2)(b) to the ground or how.

PO Green (BR 21) said that after he observed the bulge in § 87(2)(b)'s pockets and told him to remove his hand, and § 87(2)(b) refused, he attempted to frisk the bulge twice but § 87(2)(b) bladed his body away or slapped PO Green's hand to prevent him from doing so. PO Green then reached out and grabbed § 87(2)(b)'s right wrist to hold it in place against his body. § 87(2)(b) resisted by twisting his body away from PO Green and yelled, "Get the fuck off of me!" PO Green pressed his forearm against § 87(2)(b)'s chest to push him back-first to the gate while continuing to tell him, "Take your hand out of your pocket," which § 87(2)(b) did not do. When § 87(2)(b) continued to try to twist away from PO Green, PO Green brought him onto the ground with the help of Sgt. Ramirez, PO Wilson, and PO Cabrera. PO Green told his fellow officers, "Watch § 87(2)(b)'s hand." Once § 87(2)(b) was on the ground, the officers were able to pull his hands behind his back and handcuff him. § 87(2)(b) was being handcuffed at this juncture for safety reasons, as he refused to take his hand from his pocket and resisted an attempted frisk.

PO Wilson (BR 19) did not witness how the struggle between § 87(2)(b) and PO Green began, but he observed PO Green reach for § 87(2)(b)'s right hand. § 87(2)(b) resisted by raising his voice, cursing, and shifting his shoulders from side to side. PO Wilson approached to help PO Green by grabbing § 87(2)(b)'s left arm. PO Wilson heard PO Green say, "Watch his hands, watch his hands." PO Wilson did not think § 87(2)(b) was pushed against a gate or brought to the ground.

Sgt. Ramirez (BR 20) denied witnessing how the struggle began and denied participating in it. Sgt. Ramirez did not think § 87(2)(b) was pushed against a wall or brought to the ground.

PO Cabrera (BR 22) did not observe how the struggle between § 87(2)(b) and PO Green began, but believed he helped handcuff him by pulling one of his arms behind his back. PO Cabrera did not remember if § 87(2)(b) was pushed against a wall or brought to the ground.

Officers must use the minimum force necessary to effect an arrest. Patrol Guide 203-11 (BR 32)

[REDACTED]

[REDACTED]

[REDACTED] § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED] § 87(2)(g)

**Allegation H – Abuse of Authority: At St. Ann’s Avenue and East 161<sup>st</sup> Street in the Bronx,**  
**Police Officer Coty Green searched § 87(2)(b)**

It is not disputed that § 87(2)(b) was removed to the 40<sup>th</sup> Precinct stationhouse. § 87(2)(b) (BR 15) did not allege a search of his person. Video footage (BR 04 to 05; see above file labeled 2016\_4-20\_12-56-30.mp4) does not depict a search of § 87(2)(b)'s person. § 87(2)(g)

Sgt. Ramirez (BR 20) said that once § 87(2)(b) was handcuffed, he was transported to the 40<sup>th</sup> Precinct stationhouse as he had not been able to produce identification and Sgt. Ramirez wanted to verify his identity. When asked why it was necessary to verify § 87(2)(b)'s identity, Sgt. Ramirez said, "We want to know who we're dealing with...after a physical struggle, you definitely want to know who this person is, who he really is." Sgt. Ramirez also noted that because there had been a physical struggle, he did not know whether § 87(2)(b) had been injured, and that this was something he would bring § 87(2)(b) back to the 40<sup>th</sup> Precinct stationhouse for assessment. Sgt. Ramirez indicated that he did also consider § 87(2)(b) to be under arrest for disorderly conduct for the way that he physically resisted PO Green and PO Wilson by flailing his arms and pushing the officers away. Sgt. Ramirez had considered issuing § 87(2)(b) a summons for this and release him from the scene, but could not do so once § 87(2)(b) was found not to have identification on his person. When it was mentioned to Sgt. Ramirez that § 87(2)(b) was not charged with disorderly conduct on his arrest report or issued a summons separately for it, Sgt. Ramirez indicated that this was likely because § 87(2)(b)'s later assault on PO Wilson at the 40<sup>th</sup> Precinct stationhouse superseded it. Sgt. Ramirez knew of no particular reason why § 87(2)(b) was not charged with both.

CCRB – Confidential



Once PO Green stood § 87(2)(b) up from the ground, he searched other areas of § 87(2)(b)'s body, including his pants pockets and other hoodie pocket. PO Green did so to ensure that § 87(2)(b) had no other weapons on his person. PO Green had no particular reason to believe that § 87(2)(b) might have had additional weapons on his person but said that “once § 87(2)(b) was in handcuffs, he was good to get searched.” PO Green did not, at the time of the search, consider § 87(2)(b) to be under arrest, exactly; he planned to issue him a summons for disorderly conduct for the loud and unreasonable noise § 87(2)(b) had created and the obscene language he had used. PO Green’s team does not carry summons books with them, and therefore would have to take § 87(2)(b) back to the stationhouse to obtain one. Although § 87(2)(b) is under 16 and therefore not eligible to receive summonses, the officers did not know this at the time. PO Green thought that § 87(2)(b) was older due to his height (5’9” tall) and the way he was behaving. In addition, after PO Green searched § 87(2)(b) and found no identification upon him, he asked § 87(2)(b) if he had any identification upon him and § 87(2)(b) replied that he did not. This meant that in addition to retrieving their summons books, the officers would have to bring § 87(2)(b) back to the 40<sup>th</sup> Precinct stationhouse to verify his identity. PO Green prepared the arrest report for § 87(2)(b) and said he decided not to charge § 87(2)(b) with disorderly conduct because it was the “last thing he was thinking about” after § 87(2)(b) assaulted PO Wilson at the stationhouse, and that the assault took precedence. PO Green had no conversation with a supervisor about not charging § 87(2)(b) with disorderly conduct.

PO Wilson (BR 19) said that once § 87(2)(b) was handcuffed, he was asked to produce identification and § 87(2)(b) said that he had none. Once PO Wilson learned that § 87(2)(b) had no identification on him, PO Wilson’s intent was to bring § 87(2)(b) back to the stationhouse to verify his identity. PO Wilson did not intend to issue § 87(2)(b) a summons, but noted that he could have issued him one for disorderly conduct, though PO Wilson indicated that normally his unit warns and admonishes in place of issuing summonses. PO Wilson did not know what his fellow officers intended to do with § 87(2)(b).

PO Cabrera (BR 22) confirmed that to his understanding, the plan was to bring § 87(2)(b) back to the 40<sup>th</sup> Precinct stationhouse to issue him a summons for disorderly conduct, as the officers did not carry summons books with them, § 87(2)(b) did not have identification, and the officers did not at that time know that he was § 87(2)(b) of age. The officers did not explicitly discuss what they were going to do with § 87(2)(b) at the scene.

PO Green (BR 21) said that after § 87(2)(b) was handcuffed and lying on his stomach on the ground, PO Green rolled him over and reached into the right pocket of his hoodie or jacket and retrieved the object causing the bulge there, which turned out to be a hairbrush.

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, he engages in fighting, violent, tumultuous or threatening behavior, makes unreasonable noise, uses abusive or obscene language or makes an obscene gesture, obstructs pedestrian traffic, or congregates with other persons in a public space and refuses to comply with a lawful order to disperse. NYS Penal Law, Section 240.20 (1-6) (BR 27) Taking videotapes, crude and vulgar speech, and remaining in the vicinity of the stop or arrest does not constitute probable cause for arrest of an onlooker, unless the officer reasonably believes his safety or the safety of others is endangered. Patrol Guide Section 208-03 (BR 28)

For a bulge in a suspect’s clothing to justify a frisk, the bulge’s size, shape, and placement must support the conclusion that the bulge is a weapon. United States v. Jackson, 2015 U.S. Dist. LEXIS 98980 (S.D.N.Y.) (BR 30) The officer may not rely on an ‘inchoate or

unparticularized' suspicion, or hunch, as the basis for reasonable suspicion that an individual is armed. *Ibid.* Once the limited intrusion of a protective frisk fails to reveal a weapon, and the basis for the officer's fear for his safety has abated, the officer may not search an individual. People v. Rodriguez, 856 NYS 2.d 502 [Sup. Bronx] (2008) (BR 34)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation H** be closed as **substantiated**.

§ 87(2)(g)

As such, it is recommended that **Allegation I** be closed as **substantiated**.

**Allegation J – Discourtesy: En route to the 40<sup>th</sup> Precinct stationhouse, Police Officer Juan Cabrera spoke discourteously to § 87(2)(b)**

**Allegation K – Offensive Language: En route to the 40<sup>th</sup> Precinct stationhouse, Police Officer Juan Cabrera made remarks to § 87(2)(b) based upon his perceived sexual orientation.**

**Allegation L – Force: En route to the 40<sup>th</sup> Precinct stationhouse, Police Officer Romaine Wilson used physical force against § 87(2)(b)**

§ 87(2)(b) (BR 15) alleged that en route back to the 40<sup>th</sup> Precinct stationhouse, PO Cabrera made jokes to the effect that he was gay, that he was going to “fuck § 87(2)(b) in his ass,” and that he was going to stop at a store to buy condoms. PO Cabrera also asked § 87(2)(b) if he was gay. § 87(2)(b) grew upset with the officers, telling them, “Fuck you,” and saying that he “got more girls” than the officers. § 87(2)(b) believed that the way he was speaking made PO Wilson angry. As he drove on East 161<sup>st</sup> Street, PO Wilson kept his left hand on the steering wheel and with his right hand smacked § 87(2)(b) twice on the left side of his face. This caused no injury to § 87(2)(b). § 87(2)(b) was upset about being smacked and told the officers that he was going to slap PO Wilson once his handcuffs were removed.

PO Cabrera (BR 22) said that en route to the 40<sup>th</sup> Precinct stationhouse, § 87(2)(b) yelled and cursed at officers. § 87(2)(b) directed his comments to officers in general and also towards PO Cabrera specifically, telling him, “You’re a faggot. You’re gay. Why are you sitting so close to me? You’re a homo. What kind of men do you like? How many men have you fucked?” § 87(2)(b) also said that he was going to “slap the shit out of” officers, and “fuck [officers] up.” PO Cabrera did not hear any officer speak to § 87(2)(b) during transport that he could remember, except that § 87(2)(b) asked where he was being taken and the officers told him he was being brought back to the 40<sup>th</sup> Precinct stationhouse. PO Cabrera acknowledged that he was annoyed by § 87(2)(b) and the way that he was acting, but said that he ignored him throughout the ride back to the stationhouse. PO Cabrera denied telling § 87(2)(b) that he was gay, that he was going to “fuck § 87(2)(b) in his ass,” asking § 87(2)(b) if he was gay, or that he was going to stop to buy condoms. PO Cabrera never heard any other officer make any such comments to § 87(2)(b). PO Cabrera never saw any officer slap § 87(2)(b).

PO Wilson (BR 19) confirmed that § 87(2)(b) was still angry en route to the stationhouse, and told officers, “I hate you niggers. I’m going to slap the shit out of you.” § 87(2)(b) also called officers “fags.” PO Wilson thought § 87(2)(b)’s comments were directed to officers in general, not to any one officer in particular. PO Wilson denied that he ever became upset with § 87(2)(b) or observed any other officer become angry with him. PO Wilson denied slapping § 87(2)(b) and denied hearing any officer make any of the above alleged comments.

Sgt. Ramirez (BR 20) corroborated that § 87(2)(b) threatened to slap officers, but did not believe § 87(2)(b) ever made comments implying that officers were gay. Sgt. Ramirez denied becoming upset with § 87(2)(b) or observing any officer do so. Sgt. Ramirez denied seeing PO Wilson slap § 87(2)(b) and denied hearing any officer make any of the above alleged comments.

PO Green (BR 21) closely corroborated PO Wilson’s account. PO Green was not upset by the way § 87(2)(b) behaved, as “working in the south Bronx, [he] hears it all the time.”

§ 87(2)(g)

It is therefore recommended that Allegations J, K, and L be closed as unsubstantiated.

**Allegation M – Force: Inside of the 40<sup>th</sup> Precinct stationhouse, Police Officer Romaine Wilson used physical force against § 87(2)(b)**

**Allegation N – Force: Inside of the 40<sup>th</sup> Precinct stationhouse, Sergeant Brian Ramirez used physical force against § 87(2)(b)**

**Allegation O – Force: Inside of the 40<sup>th</sup> Precinct stationhouse, Police Officer Coty Green used physical force against § 87(2)(b)**

**Allegation P – Force: Inside of the 40<sup>th</sup> Precinct stationhouse, Police Officer Juan Cabrera used physical force against § 87(2)(b)**

It is not disputed that § 87(2)(b) punched PO Wilson in the juvenile holding area once his handcuffs were removed. It is not disputed that some level of physical force was then used against § 87(2)(b) § 87(2)(g).

§ 87(2)(b) (BR 15) alleged that after he punched PO Wilson, PO Wilson reacted by repeatedly punching him and slapping him about his head. Sgt. Ramirez, who was present in the room, also punched and slapped § 87(2)(b) on his face. Another officer – § 87(2)(b) could not tell which – grabbed § 87(2)(b) from behind. PO Wilson, Sgt. Ramirez, PO Green, PO Cabrera, and another, uniformed officer entered and all participated in bringing § 87(2)(b) onto the ground, though § 87(2)(b) could not tell where exactly they made contact with him or what they did to bring him onto the ground. § 87(2)(b) landed face-down on the ground. § 87(2)(b) felt additional blows to the back of his head, and assumed that PO Wilson was still punching him, though he could not see at this time. Sgt. Ramirez also punched him repeatedly on his right thigh, causing a bruise there, though again § 87(2)(b) could not see during this time. Sgt. Ramirez repeatedly said, “Stop resisting.” § 87(2)(b) denied resisting before he was brought to the ground, and did not resist once he was on the ground except to curl up to protect himself against the officers’ blows. The blows continued even after § 87(2)(b) was handcuffed. § 87(2)(b) later felt pain and loss of hearing to his right ear, which he thought was caused by these repeated blows.

§ 87(2)(a) PHL § 18(6)

[REDACTED]

As was discussed above, the 40<sup>th</sup> Precinct could not locate a copy of the prisoner holding pen roster (BR 25), and attempts to identify potential witnesses through the command log (BR 26) yielded negative results, as the juvenile holding area is not visible from the adult holding cell.

PO Wilson (BR 19) said that after § 87(2)(b) punched him, he stumbled backwards, inadvertently striking his right hand on a railing mounted on the wall of the juvenile holding area, which caused a laceration. PO Wilson also sustained swelling to his face from where § 87(2)(b) punched him. These injuries are documented in the Line of Duty and AIDED report (BR 35) that was completed for PO Wilson. PO Cabrera and Sgt. Wilson, who were also in the juvenile holding area, both grabbed § 87(2)(b)'s hands and shoulders and brought § 87(2)(b) front-first onto the ground. § 87(2)(b) resisted by screaming, yelling, kicking his legs, and moving his shoulders from side to side. PO Cabrera and Sgt. Ramirez eventually placed § 87(2)(b) into handcuffs. PO Wilson denied aiding PO Cabrera and Sgt. Ramirez in the struggle with § 87(2)(b) and did not think any other officer did so. PO Wilson denied punching or slapping § 87(2)(b) or seeing any officer do so.

Sgt. Ramirez (BR 20) said that at the time § 87(2)(b) punched PO Wilson, he was standing to § 87(2)(b)'s right side. After § 87(2)(b) punched PO Wilson, Sgt. Ramirez grabbed his right side. § 87(2)(b) resisted by attempting to push Sgt. Ramirez away by placing his hands on Sgt. Ramirez's chest. PO Cabrera arrived to assist Sgt. Ramirez, but Sgt. Ramirez was not sure how he helped. Sgt. Ramirez did not remember if any other officers assisted. Sgt. Ramirez told § 87(2)(b) "Stop resisting. Put your hands behind your back," which § 87(2)(b) did not do. After about a minute, Sgt. Ramirez was able to pull § 87(2)(b)'s arms behind his back. Sgt. Ramirez did not think he brought § 87(2)(b) onto the ground, and denied punching or slapping him, or seeing any officer do so.

PO Green (BR 21) said that he was standing outside the juvenile holding area in the muster room when he heard a loud thump coming from the juvenile holding area. PO Green then saw PO Cabrera run into the juvenile holding area. PO Green ran in after him. When PO Green arrived, he saw that § 87(2)(b) was face-down on the ground. § 87(2)(b) was kicking his legs, moving his body from side to side, and saying, "Get the fuck off me." Sgt. Ramirez was positioned on the right hand side of § 87(2)(b)'s body, level with his waist, PO Wilson was opposite Sgt. Ramirez, and PO Cabrera was positioned by § 87(2)(b)'s legs. Sgt. Ramirez and PO Wilson were holding § 87(2)(b)'s arms and trying to pull them behind his back. PO Green approached and tried to hold § 87(2)(b)'s legs down to prevent him from kicking. After about a minute, Sgt. Ramirez and PO Wilson brought § 87(2)(b)'s arms behind his back and handcuffed him. PO Green never saw any officer slap or punch § 87(2)(b) and denied doing so himself.

PO Cabrera (BR 22) said he was also in the muster room when he saw § 87(2)(b) punch PO Wilson. PO Wilson stumbled back. Sgt. Ramirez approached and grabbed § 87(2)(b) though PO Cabrera did not remember where, and brought or fell with § 87(2)(b) to the ground, who resisted by attempting to push the officers away, to the ground. Two other uniformed officers in the juvenile holding area who PO Cabrera could not identify or describe came to Sgt. Ramirez's aid. PO Cabrera ran into the juvenile holding area, but by the time he arrived, § 87(2)(b) had already been handcuffed. PO Cabrera did not punch, or see any officer punch, § 87(2)(b).

The incident was documented in a UF-49 report (BR 36). The UF-49 § 87(2)(g) noted that Sgt. Ramirez, PO Green, and PO Cabrera were all involved in bringing § 87(2)(b) onto the ground.

Officers must use the minimum level of physical force necessary to effect an arrest. Patrol Guide Section 203-11 (BR 32)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(a) PHL § 18(6), § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations M and N** be closed as **exonerated**.

§ 87(2)(g)

As such, it is recommended that **Allegations O and P** be closed as **exonerated**.

**Allegation Q – Discourtesy: Inside of the 40<sup>th</sup> Precinct stationhouse, Police Officer Romaine**

**Wilson spoke discourteously to § 87(2)(b)**

**Allegation R – Discourtesy: Inside of the 40<sup>th</sup> Precinct stationhouse, Police Officer Juan**

**Cabrera spoke discourteously to § 87(2)(b)**

**Allegation S – Abuse of Authority: Inside of the 40<sup>th</sup> Precinct stationhouse, Police Officer Romaine Wilson threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) (BR 15) said that after the struggle, he was seated on a bench in the juvenile holding area while his arrest was processed and PO Wilson and PO Cabrera visited him there. PO Wilson called § 87(2)(b) a “little girl,” and a “pussy.” PO Cabrera called § 87(2)(b) a “little girl.” PO Wilson also told § 87(2)(b) “We could take you in a back room and fight. If you win we’ll let you go. If you lose, you’ll have to admit that you had a weapon.”

As was discussed above, the 40<sup>th</sup> Precinct did not have a copy of the prisoner holding pen roster. The prisoners listed on the command log were transported to Bronx Central Booking at 7:45 p.m., which based upon the timing of this incident as described by § 87(2)(b) would have been before the alleged use of profanity.

PO Wilson (BR 19) acknowledged that he constantly tried to speak to § 87(2)(b) throughout his arrest processing to tell him that there was “no reason to be acting like this.” § 87(2)(b) rebuffed PO Wilson’s attempts to engage him, saying, “Fuck you. You don’t know me... That’s why you guys get shot.” PO Wilson denied ever calling § 87(2)(b) a “little girl,” or a “pussy,” or telling him that they could fight. In general PO Wilson denied ever threatening § 87(2)(b) with the use of force, or using profanity towards him.

[illegible]

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| Investigator: | _____           | _____ | _____ |
|               | Signature       | Print | Date  |
| Squad Leader: | _____           | _____ | _____ |
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| Reviewer:     | _____           | _____ | _____ |
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